

Chapter 2 Compliance with this By-law

2.1 Matters to Comply

2.1.1 General

(1) Uses to Conform with this By-law

No person may use or permit the use of any land, **building** or **structure** except in conformity with this By-law.

(2) Buildings and Structures to Comply with this By-law

No person may use, erect or alter a **building** or **structure** that does not comply with this By-law.

(3) Lands to Comply with this By-law

A **lot** may not be reduced in area either by severance, conveyance, transfer of ownership or otherwise, unless the remainder of the **lot** complies with this By-law.

(4) Reduction of Lot Area - Conveyance to a Public Authority

If a conveyance or dedication required by a Federal, Provincial or Municipal government, or an expropriation by an expropriating authority:

(A) causes a **lot** to not comply with the required minimum **lot frontage**, required minimum **lot depth**, required minimum **lot area** or required minimum **building setback** regulations of this By-law, the **lot** is deemed to comply with those regulations if the reduction:

(i) creates a **lot frontage**, **lot depth** or **lot area**, that is at least 85% of the required minimum **lot frontage**, required minimum **lot depth** or required minimum **lot area** for the zone in which the **lot** is located; or

(ii) creates a **building setback** that is at least 75% of the required minimum **building setback** for the zone in which the **lot** is located;

(B) reduces the permitted maximum number of **dwelling units** or the permitted maximum **gross floor area** on a **lot**, the number of dwelling units or the **gross floor area** on the **lot** is the permitted maximum number of **dwelling units** or the permitted maximum **gross floor area** that was permitted on the **lot** on the day before the conveyance, dedication or expropriation; [By-law: 451-2022]

(C) causes required **parking spaces** on a **lot** to be removed, the required **parking spaces** that remain are deemed to satisfy the **parking space** requirements of this By-law for that **building** and permitted uses that were on the **lot** on the day before the conveyance, dedication or expropriation; and [By-law: 451-2022]

(D) reduces the area of a **lot** so as to cause:

(i) a **lawfully existing building** on a **lot** to exceed the permitted maximum **lot coverage**, the permitted maximum **lot coverage** on that **lot** is the **lot coverage** on the **lot** on the day of the conveyance, dedication or expropriation; or

(ii) a vacant **lot** to have a smaller **lot area**, the permitted maximum **lot coverage** for that vacant **lot** is based upon the **lawful lot area** of that vacant **lot** on the day before the conveyance, dedication or expropriation. [By-law: 0559-2014 (OMB PL130592)]

2.1.2 Variances

(1) Continuation of Existing Variances

All minor variances applied for prior to the enactment of this By-law and finally approved pursuant to Section 45 of the Planning Act or its predecessor continue to apply and remain in force as if they are variances to this By-law for **lawfully existing lots, buildings or structures**.

(2) Continuation of Finally Approved Variances

After the expiration of the exemption period in Clause 2.1.3.7, any finally approved minor variances under the **Former General Zoning By-laws** may be relied upon, if the regulatory standard respecting which the minor

variance was given is the same or more permissive in this By-law than in the **Former General Zoning By-laws**.

(3) Minor Variance - Application of Former General Zoning By-laws

The **Former General Zoning By-laws**, including the definitions, apply to assist in the interpretation of any minor variance referred to in regulation 2.1.2(1) and (2) in the context of this By-law.

2.1.3 Transition Clauses

2.1.3.1 Transition Clause General

(1) Transition Clause General

Deleted in accordance with Regulation 2.1.3.8, May 9, 2018. [By-law: 569-2013]

2.1.3.2 Transition: Building Permit Applications

(1) Building Permit Applications

Deleted in accordance with Regulation 2.1.3.8, May 9, 2018. [By-law: 569-2013]

(2) Building Permit Applications

Deleted in accordance with Regulation 2.1.3.8, May 9, 2018. [By-law: 569-2013]

2.1.3.3 Transition: Zoning Certificate Applications

(1) Zoning Certificate Applications

Deleted in accordance with Regulation 2.1.3.8, May 9, 2018. [By-law: 569-2013]

(2) Zoning Certificate Applications

Deleted in accordance with Regulation 2.1.3.8, May 9, 2018. [By-law: 569-2013]

(3) Zoning Certificate Applications

Deleted in accordance with Regulation 2.1.3.8, May 9, 2018. [By-law: 569-2013]

2.1.3.4 Transition: Minor Variance Applications

(1) Transition: Minor Variance Applications

Deleted in accordance with Regulation 2.1.3.8, May 9, 2018. [By-law: 569-2013]

(2) Minor Variance Applications

Deleted in accordance with Regulation 2.1.3.8, May 9, 2018. [By-law: 569-2013]

(3) Minor Variance Applications

Deleted in accordance with Regulation 2.1.3.8, May 9, 2018. [By-law: 569-2013]

2.1.3.5 Transition: Site Plan Approval Applications

(1) Site Plan Approval Applications

Deleted in accordance with Regulation 2.1.3.8, May 9, 2018. [By-law: 569-2013]

(2) Site Plan Approval Applications

Deleted in accordance with Regulation 2.1.3.8, May 9, 2018. [By-law: 569-2013]

(3) Site Plan Approval Applications

Deleted in accordance with Regulation 2.1.3.8, May 9, 2018. [By-law: 569-2013]

2.1.3.6 Transition: Other Approvals and Agreements

(1) Other Approvals and Agreements

Deleted in accordance with Regulation 2.1.3.8, May 9, 2018. [By-law: 569-2013]

(2) Other Approvals and Agreements

Deleted in accordance with Regulation 2.1.3.8, May 9, 2018. [By-law: 569-2013]

(3) Other Approvals and Agreements

Deleted in accordance with Regulation 2.1.3.8, May 9, 2018. [By-law: 569-2013]

2.1.3.7 Transition Clause Duration

(1) Transition Clause Application

Nothing in this By-law applies so as to continue the application of Clauses 2.1.3.1 to 2.1.3.6 beyond the issuance of the building permit upon which the exemptions are founded.

(2) Transition Clause Duration

In no case do the exemptions mentioned in Clauses 2.1.3.1 to 2.1.3.6 continue beyond the repeal of this transition section.

2.1.3.8 Transition Clause Repeal

(1) Transition Clause Repeal

Clauses 2.1.3.1 to 2.1.3.6 are repealed five years after May 9, 2013. [OMB PL130592 Sept 13,2016]

[By-law: OMB PL130592 Sept 13,2016]